

Application for refund of duty/interest

PART-A

To

The Assistant Commissioner of Customs,

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I/We wish to lodge this claim for refund of customs duty/interest which have been paid in excess by me/us as per details given below :

1. Import/Export document (Bill of Entry, Shipping Bill etc.)/Purchase Invoice - Number and Date :
2. Duty deposit reference (Cash No./Deposit No.) and date :
3. Description of goods :
4. Name and address of (a) Importer :
(b) Customs House Agent :
(c) Applicant :
5. Refund Claim under : section 27(1)(a)/section 27(1)(b) of the Act.
6. Ground of claim* :
[*specify with details whether the claim is on account of reassessment of rates of duty/valuation, Shortage/Short-landing, Pilferage, appellate order, arithmetical/clerical error, any other ground (specify).]
7. Amount of refund claim :
8. Amount of Modvat credit availed from the additional duty of customs paid and now covered by the refund claim :
9. **Enclosures* (in original) in support of refund claim** :
(*Please put a tick mark () against the document being enclosed)
 - (a) Letter of authorisation from the importer/buyer in case the applicant is an agent.
 - (b) Triplicate copy of Bill of Entry/Post parcel wrapper/ Shipping Bill/Baggage Receipt or the Purchase Invoice
 - (c) Duty Challan/Other document as evidence of duty payment
 - (d) Signed working sheet for the amount of refund claimed
 - (e) Customs attested invoice
 - (f) Customs attested packing List
 - (g) Documents for establishing the applicant's eligibility to receive the refund amount in terms of the proviso to sub-section (2) of section 27 of the Act, including documents for the purposes of sections 28C and 28D of the Act.

- (h) Contract and Purchase order
 - (i) Modvat credit certificate from Central Excise authorities
 - (j) Order in original/in revision/in Appeal/any other order
 - (k) Short delivery certificate from custodian
 - (l) Short shipment certificate from supplier
 - (m) Survey report
 - (n) Insurance claim settlement certificate
 - (o) Catalogue/Technical Write-up/Literature
 - (p) Bills for Freight/Insurance/Other charges
 - (q) Certificate of origin
 - (r) Any other document considered necessary in support of the claim (specify)
 - (s) Total Number of documents enclosed :
10. Any further details deemed necessary and relevant to the refund claim :
 11. Whether any other refund claim filed/pending against the same Import/Export document (Bill of Entry, Shipping Bill etc.). If yes, give details. : Yes/No
 12. Whether personal hearing required or not before the case is decided : Yes/No
 13. (a) Whether the duty has been paid under protest : Yes/No
(b) If yes, Customs House protest registration No. :

DECLARATION

I/We..... hereby declare that -

- (a) the contents of the refund claim as per form above are true and correct to the best of my/our information and belief;
- (b) the amount and the ground for which this refund claim has been filed has not been previously claimed and paid; and that
- (c) the excess duty claimed as refund has not been passed on to any other person by the importer/buyer.

Signature of the applicant

Date.....

PART B

[See regulation 2(2)]

ACKNOWLEDGEMENT FOR CUSTOM HOUSE USE

FILE NO.....

Refund claim of Mr/M/s.....for Rs.....against Bill of Entry/Post Parcel/
Baggage Form/Shipping Bill No.....dated.....received in complete manner
on admitted for examination vide Customs Refund Registration
No.....dated.....

for Assistant Commissioner of Customs

Date.....

**ACKNOWLEDGEMENT
TO BE ISSUED TO THE APPLICANT**

FILE NO.....

Refund claim of Mr./M/s.....for Rs.....against Bill of
Entry/Post Parcel/Baggage Form/Shipping Bill No.....dated.....received
in complete manner on.....admitted for examination vide Customs Refund
Registration No.....dated.....

for Assistant Commissioner of Customs

Date.....

PART C
[See regulation 2(3)]
**CLAIM SCRUTINY
FOR CUSTOM HOUSE USE**

FILE NO.....

Refund claim of Mr./M/s.....for Rs.....against Bill of
Entry/Post Parcel/Baggage Form/Shipping Bill No.....Dated.....has
been scrutinised and found deficient in the following manner for purpose of examination
under section 27 of the Customs Act, 1962. Importer/Customs House Agent/Applicant
is requested to make good the deficiency and resubmit the claim at the earliest.

- 1.
- 2.
- ...

Proper Officer of Customs

Date.....

TO BE ISSUED TO THE APPLICANT

FILE NO.....

Refund claim of Mr./M/s.....for Rs.....against Bill of
Entry/Post Parcel/Baggage Form/Shipping Bill No.....dated.....has
been scrutinised and found deficient in the following manner for purpose of examination
under section 27 of the Customs Act, 1962. Importer/Customs House Agent/Applicant
is requested to make good the deficiency and resubmit the claim at the earliest.

- 1.
- 2.
- ...

Proper Officer of Customs

Date.....